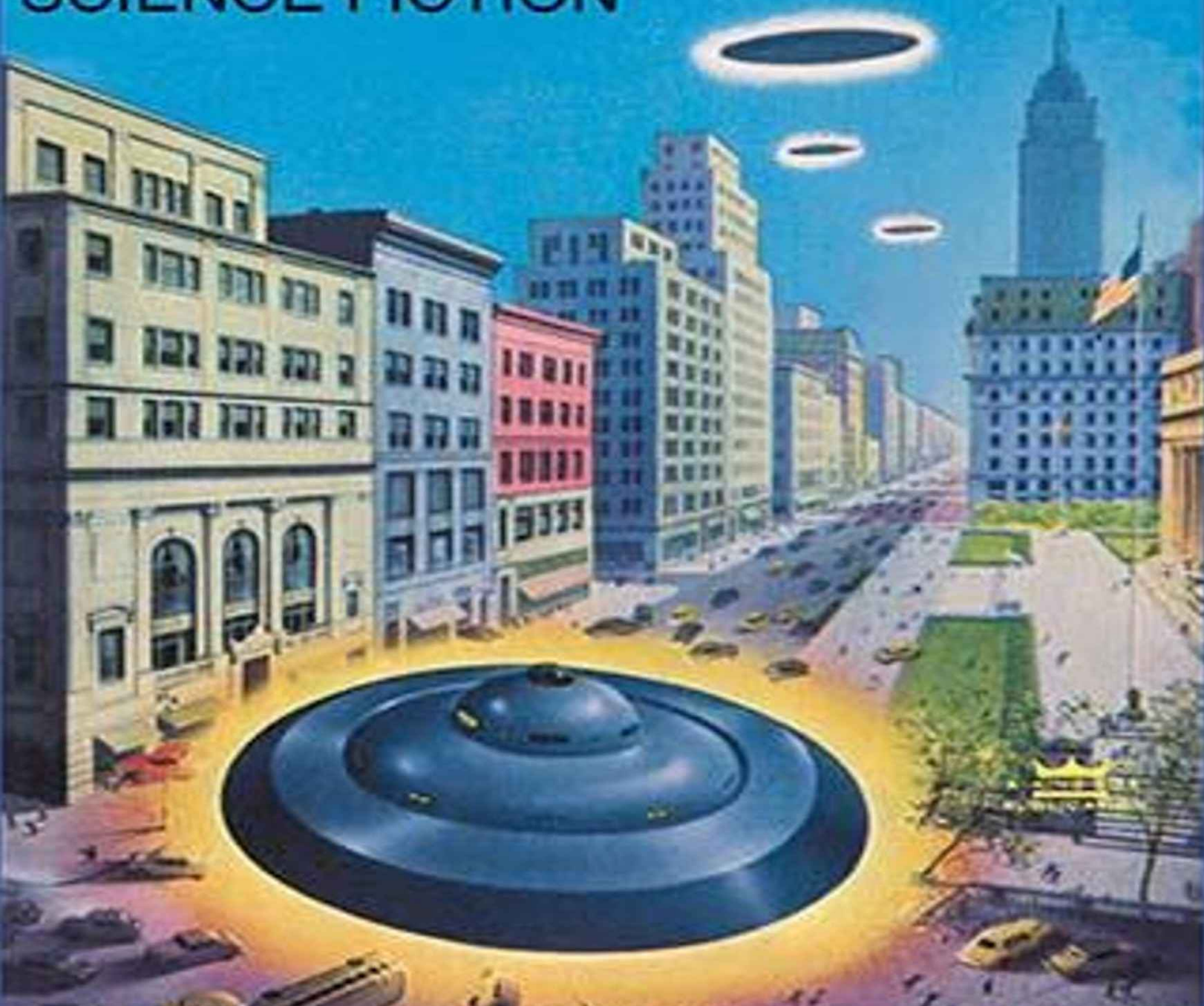


FANTASTIC UNIVERSE

NOW
35c
JULY

SCIENCE FICTION



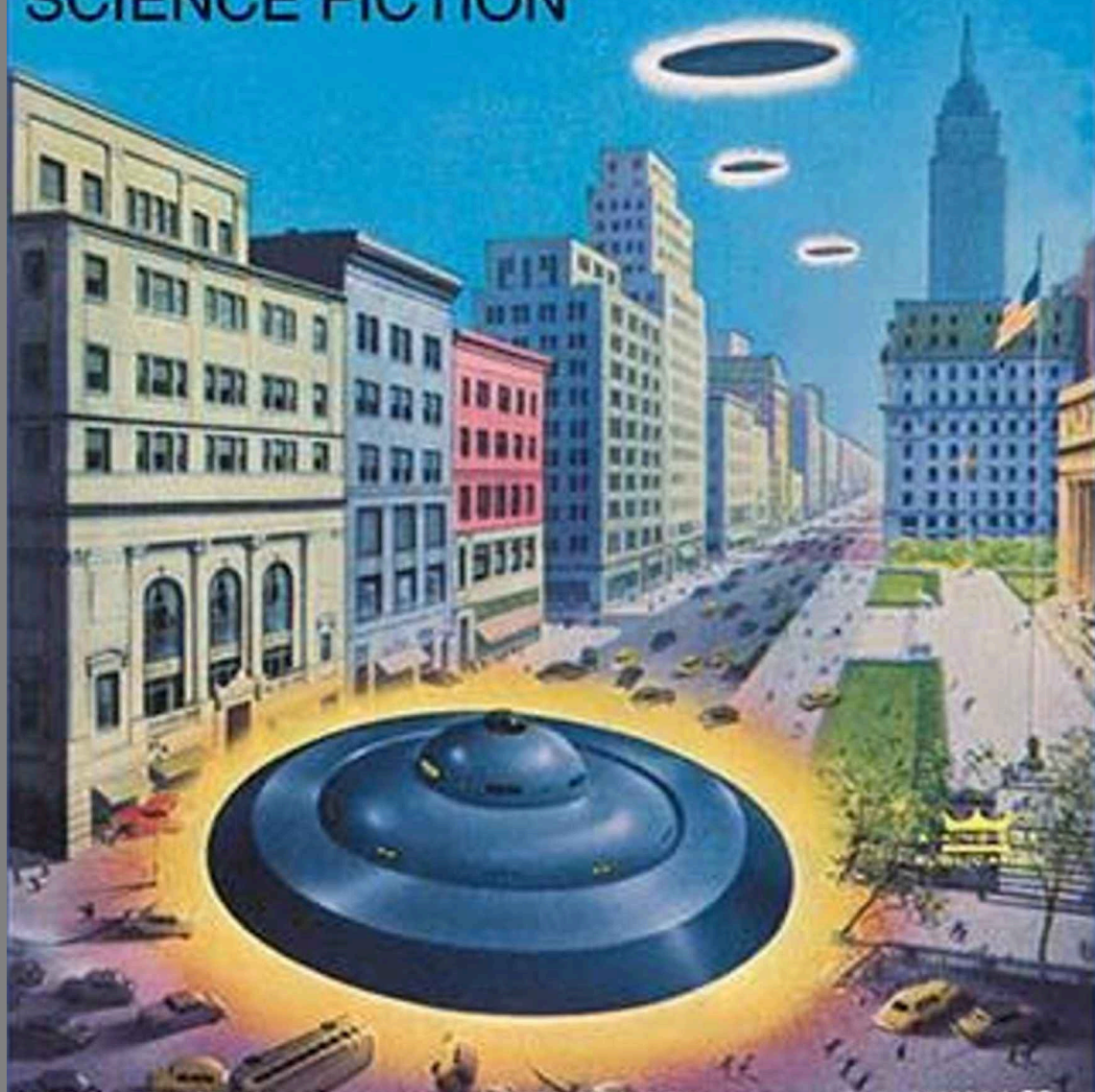
MARGARET ST. CLAIR • LESTER DEL REY • F. L. WALLACE
PHILIP JOSE FARMER • FRANK BELKNAP LONG • ALGIS BUDRYS
SAM CARSON • IDRIS SEABRIGHT • JOHN VICTOR PETERSON

ALL STORIES IN THIS ISSUE BRAND NEW

FANTASTIC UNIVERSE

SCIENCE FICTION

NOW
35c
JULY



MARGARET ST. CLAIR • LESTER DEL REY • F. L. WALLACE
PHILIP JOSE FARMER • FRANK BELKNAP LONG • ALGIS BUDRYS
SAM CARSON • IDRIS SEABRIGHT • JOHN VICTOR PETERSON

ALL STORIES IN THIS ISSUE BRAND NEW

The Project Gutenberg eBook of Battleground

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Battleground

Author: Lester Del Rey

Release date: April 1, 2024 [eBook #73313]

Language: English

Original publication: New York, NY: King-Size Publications, Inc., 1954

Other information and formats: www.gutenberg.org/ebooks/73313

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK
BATTLEGROUND ***

Battleground

By Lester del Rey

**We know that the human race must
struggle to survive—and that
on the outcome may hang disaster.
But just how wide is Armageddon?**

*Lester del Rey would certainly be
acclaimed by any unbiased critic as
one of America's ten most gifted
science fiction writers. His work has
appeared in many magazines, and
Hollywood, radio, and TV have all
enhanced his ever-growing
popularity. In BATTLEGROUND
he has found a theme worthy of his
rare talents—the doom potential in
an alien culture.*

**[Transcriber's Note: This etext was produced from
Fantastic Universe July 1954.**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

Beyond the observation port of the hypercruiser *Clarion* lay the utter blackness of nothing. The ship was effectively cutting across space without going through it, spanning parsecs for every subjective day of travel.

There were neither stars, space nor time around them, and only the great detectors built into the ship could keep them from being hopelessly lost. These followed a trail of energy laid down on the way out from Earth years before, leading them homeward, solar system by solar system.

Acting Captain Lenk stood with his back to the other three, studying their sullen reflections in the port. It was better than facing them directly, somehow, even though it showed his own bald scalp, tautly hollow face and slump-shouldered body.

"All right," he said at last. "So we vote again. I'll have to remind you we're under orders to investigate all habitable planets on a line back to Earth. I vote we follow orders. Jeremy?"

The xenologist shrugged faintly. His ash-blond coloring, general slimness and refinement of features gave him a look of weakness, but his voice was a heavy, determined bass. "I stand pat. We didn't explore the last planet enough. I vote we go back and make a thorough job of it."

"Home—at once!" The roar came from the squat, black-bearded minerologist, Graves. "God never meant man to leave the world on which He put him! Take us back, I say, where...."

"Aimes?" Lenk cut in quickly.

They'd heard Graves' violently fundamentalist arguments endlessly, until the sound of his voice was enough to revive every antagonism and hatred they had ever felt. Graves had been converted to the newest and most rapidly expanding of the extreme evangelical faiths just before they had left. And unfortunately for the others, he had maintained that his covenant to go on the exploration could not be broken, even though venturing into space was a cardinal sin.

Aimes glowered at the others from under grizzled eyebrows. Of them all, the linguodynamicist took part in the fewest arguments and apparently detested the others most. He turned his heavy body now as he studied them,

seemingly trying to make up his mind which he detested most at the moment. Then he grunted.

"With you, Captain," Aimes said curtly.

He swung on his heel and stalked out of the control cabin, to go back to studying the undeciphered writing of the planets they had visited.

Graves let out a single hiss and followed, probably heading for the galley, since it was his period to cook.

Jeremy waited deliberately until the minerologist's footsteps could no longer be heard, and then turned to leave.

Lenk hesitated for a second, then decided that monotony was worse than anything else. "How about some chess, Jeremy?" he asked.

The other stopped, and some of the sullenness left his face. Apparently the protracted arguments had wearied him until he was also feeling the relief of decisive action. "Why not?" Jeremy said. "I'll set up the board while you fiddle with your dials."

No fiddling was necessary, since Lenk had never cut them off their automatic detecting circuit, but he went through the motions for the other's benefit. Gravitic strain came faintly through hyperspace, and the ship could locate suns by it. If approach revealed planets of habitable size, it was set to snap out of hyperspace automatically near the most likely world.

Lenk had been afraid such a solar system might be found before they could resolve the argument, and his own relief from the full measure of cabin fever came from the end of that possibility.

They settled down to the game with a minimum of conversation. Since the other four members of the crew had been killed by some unknown virus, conversation had proven less than cheerful. It was better when they were on a planet and busy, but four people were too few for the monotony of hypertravel.

Then Jeremy snapped out of it. He cleared his throat tentatively while castling, grimaced, and then nodded positively. "I was right, Lenk. We never did explore those other planets properly."

"Maybe not," Lenk agreed. "But with the possibility of alien raiders headed toward Earth...."

"Bunk! No sign of raiders. Every indication was that the races on those worlds killed themselves off—no technology alien to their own culture. And there would have been with aliens invading."

"Time that way? Coincidence can account for just so much."

"It has to account for the lowering cultural levels in the colonizing direction," Jeremy said curtly. "Better leave that sort of argument to Aimes. He's conditioned to it."

Lenk shrugged and turned back to the chess. It was over his head, anyhow.

Men had built only three other cruisers capable of exceeding the speed of light, so far. The first had gone out in a direction opposite to that of the *Clarion* and had returned to report a regular decline in culture as the distance of habitable worlds from Earth increased. The nearest was in a medieval state, the next an early bronze culture, then a stone-age one, and so on, down to the furthest explored, where the native race had barely discovered fire.

It had been either impossible coincidence or the evidence of some law nobody has been quite ready to accept, save for the newly spreading fundamentalists, who maintained it proved that Earth was the center of the universe.

The other two cruisers had not reported back when the *Clarion* took off.

And their own trip had only added to the mystery, and they had touched on four habitable systems. And on each, there had been evidence of a highly developed race and some vast struggle that had killed off that race completely.

The furthest had lain fallow for an unguessable period of time, and in each succeeding one, evidence indicated the time interval since the destruction of the culture had been less. On the world they had left, the end must have come not more than a few thousand years before.

"Suppose one race had gone along in a straight line, seeding the systems with life," Lenk guessed. "Remember, every race we found had similarities.

And suppose another race of conquerors stumbled on that line and is mopping up? Maybe with some weapon that leaves no trace."

Jeremy looked at him. "Suppose Graves is right, and his God wipes out all wicked races. He keeps planting races, hoping they'll turn out right, and wiping out the old ones?" he snorted. "Only, of course he thinks Earth is the only world that counts. We're dealing with facts, Lenk, not wild theories. And why should an alien race simply wipe out another race, wait a thousand years or so, and move on—without using the plant afterwards, even for a base for the next operation? Also, why should we find plenty of weapons, but no skeletons?"

"Skeletons are pretty fragile. And if somebody had the mythical heat ray...."

"Bunk! If it would vaporize calcium in the bones, it would vaporize some of the parts of the weapons we found." Jeremy moved a rook, considered it, and pointed. "Check. And there are always some parts of skeletons that will last more than a thousand years. I've got a theory, but it's...."

Pale light cut through the viewing port, and a gong sounded in the room. Lenk jerked to his feet and moved to his screens.

"Maybe we'll know now," he said. "We'll be landing on a planet in about an hour. And it looks pretty much like Earth, from here."

He cranked up the gain on the magnifiers, and studied it again, scanning the surface of the planet below them. There were clouds in the sky, but through a clear patch he made out enough evidence.

"Want me to set us down near a city?" he asked, pointing.

Jeremy nodded. Like all the other planets on this trip, the one below was either inhabited or had been inhabited until recently.

They knew before the ship landed that the habitation was strictly past tense, at least as far as any high level of culture was concerned. The cities were in ruins.

At one time, they must have reared upwards to heights as imposing as those of the free state of New York City or the commonwealth of Chicago. But now the buildings had lost their top-most towers, and the bases showed yawning holes in many places.

They landed in the center of the largest city, after a quick skim over the surface to be sure that no smaller city had escaped. A quick sampling of the air indicated it was breathable, with no poisons and only a touch of radioactivity, too low to be dangerous.

Aimes and Jeremy went out, each in a little tractor. While making explorations, they were capable of forgetting their antagonisms in their common curiosity.

Graves remained on the ship. He had decided somewhere along the line that setting foot on an alien planet was more sinful than travel through space, and refused to be shaken.

Lenk finished what observations were necessary. He fiddled around, bothered by the quiet city outside. It had been better on the other worlds, where the ruins had been softened by time and weather. Here, it was too easy to imagine things. Finally, he climbed into rough clothes, and went out on foot.

Everything was silent. Grass almost identical with that of Earth was growing through much of the torn pavement, and there were trees and bushes here and there. Vines had climbed some of the ruined walls. But there were no flowers. Much of the planet had apparently been overgrown with forest and weeds, but this city was in a temperate zone, and clear enough for easy travel.

Lenk listened to the wind, and the faint sighing of a few trees nearby. He kicked over stones and rubble where they lay on patches of damp earth. And he kept looking at the sky.

But it was no different from other worlds as far as the desolation went. There were no insects, and no animals stared warily up from the basements, and the grass showed no signs of having been grazed. It was as if the animal kingdom had never existed here.

He made his way back from the section of largest buildings, toward what might have been a park at one time. Here there was less danger of being trapped in any collapsing ruin, and he moved more confidently. The low buildings might have been public sites, but they somehow seemed more like homes.

He stumbled on something, and leaned down to pick it up. At first, the oddness of its design confused his vision. Then he made out a barrel with rifling inside, and a chamber that still contained pellets, now covered with corrosion. It would have fitted his hand oddly, but he could have used the pistol.

Beyond it lay a line of rust that might have been a sword at one time. Coiled over it was a heavy loop of thick plastic that ended in a group of wires, apparently of stainless steel. Each wire ended in a row of cutting points. It might have been a cross between a knout and a bolas. He had a vision of something alien and sinister coming at him with one of those, and shuddered.

There was a ruin of rust and corroded parts further on that might have been a variation of a machine gun. Lenk started for it, to be stopped by a shout.

"Hold it!" It was Jeremy's voice, and now the tank came around a corner, and headed toward him. "Stay put, Lenk. That thing may be booby-trapped. And we can't be sure here that there has been time enough to make it safe."

Lenk shuddered again, and climbed in hastily as Jeremy held open the door. It was tight inside, but reasonably safe, since the tank had been designed for almost anything. Jeremy must have seen him leaving the ship and followed.

But by noon they had abandoned the fear of booby-traps. Either there had never been any or time had drawn their stings.

Lenk wandered through the section already roughly surveyed, and declared safe. He felt convinced the inhabitants of this world once had been more like men than most other races. They had been two-legged, with arms and heads in a human position on their upright bodies.

Judging from the size of the furniture, they had been slightly larger than men but not enough to matter. The pictures on the walls were odd mostly for the greenish tints of the skin and the absence of outward noses or ears. With a little fixing and recoloring, they might have been *people*.

He came to a room that had been sealed off, pried open the door, and went in. It smelled stale enough to indicate that it had been reasonably air-tight. Benches and chairs ran along one wall, and a heavy wooden table occupied the middle. On that were piled bits and pieces in a curious scramble. He

studied them carefully—belts, obviously, buttons, the inevitable weapons, scraps of plastic material.

A minute later, he was shouting for Jeremy over the little walkie-talkie. The xenologist appeared in less than five minutes. He stared about for a second, then grinned wryly.

"Your first, eh? I've found a lot of them. Sure, those were corpses there once." He saw Lenk's expression, and shrugged. "Oh, you were right to call me. It proves we weren't crazy. Wood and some cloth still preserved, but no bones. I've got a collection of pictures like that."

"A corrosive gas—" Lenk suggested.

Jeremy shook his head vigorously. "No dice, Captain. See that belt? It's plant fiber—something like linen. No gas strong enough to eat up a body would leave that unharmed. And they had skeletons, too—we've found models in what must have been a museum. But we can't even find the fossil skeletons that should be there. Odd, though."

He prodded about among the weapons, shaking his head. "All the weapons in places like this show evidence of one homogeneous design. And all the ornaments are in a T shape, like this one."

He lifted a stainless metal object from the floor and dropped it. "But outside in the square, there are at least two designs. For once, it almost looks as if your idea of an alien invader might be worth considering."

The radio at his side let out a squawk, and he cut it on listening to the thin whisper that came from it. Abruptly, he swung about and headed toward his tractor outside, with Lenk following.

"Aimes has found something," Jeremy said.

They found the linguodynamicist in the gutted ruins of a building into which great concrete troughs led. A rusty ruin in one of the troughs indicated something like a locomotive had once run in it, apparently on great ball bearings. The fat man was pointing excitedly toward something on one of the walls.

At first glance, it seemed to be a picture of more of the green people, apparently undergoing some violent torture. Then their eyes swept on—and they gasped.

Over the green people, three vaguely reptilian monstrosities were hovering, at least twice the size of the others, all equipped with the fanged whips Lenk had seen. One of the green men was apparently trying to defend himself with a huge T-shaped weapon, but the others were helpless. The reptilian monsters sprouted great ugly wings of glaring red from their shoulders.

"The invaders," Lenk said. They were horrible things to see. "But their weapons weren't that big...."

"A war poster!" Aimes said bitterly. "It doesn't tell a thing except that there were two groups."

Jeremy studied it, more closely. "Not necessarily even that. It's designed for some emotional effect. But at least, it's a hint that there may have been enemies unlike the ones who lived here. Lenk, can I take the scout ship out?"

"Go ahead," Lenk told him. He frowned at the poster. "Jeremy, if that means the human race is going to have to face an alien invasion from monsters like that...."

"It means nothing!"

Jeremy went off, with Aimes apparently in agreement for a change. Lenk stood studying the poster. Finally he ripped it down, surprised to find how strong it still was, and rolled it up to carry back to the ship.

Each world had been razed more recently, and each with the same curious curse. The race had risen to a high culture, and then had seemingly been wiped out in a few brief years. The destruction had accounted for all life on the planet, other than vegetable—and had wiped out even the bones. All that had been left was a collection of weapons and relics of more doubtful use.

The pattern was the same. The direction was steadily toward Earth, leaping from planet to planet at jumps of thousands of years apart, or perhaps mere hundreds. This planet must have been attacked less than five hundred years before, though it was hard to tell without controlled study of decay here.

Even now Earth might be suffering the invasion! They had been gone nearly three years. And during that time, the monsters might have swooped

down hideously out of space.

They might return to find the Earth a wasteland!

His thoughts were a turmoil that grew worse as he stared at the poster. The unknown artist had done his job well. A feeling of horror poured out of it, filling him with an insensate desire to find such monstrosities and rend and maim them, as they had tormented the unfortunate green people.

Graves came stomping up to the control room, carrying lunch, and took one look at the picture. "Serves the heathens right," he grumbled. "Look at them. In hell, suffering from the lashes of the devils of the pit. And still holding up that heathen charm."

Lenk blinked. But Graves' idea wasn't too fantastic, at that. The creatures did look like devils, and the T-shaped object might be a religious symbol. Hadn't some faith or other used the tau cross in its worship? And those objects on the third world back had resembled swastikas, which were another religious symbol on Earth.

That part fitted. During periods of extreme stress or danger, man sought some home in his faith. Was it so unnatural that alien races might do the same?

"Isn't there anything hopeful in your religion, Graves?" he asked bitterly, wondering what the man had been like before his conversion to the rigidity he now possessed. He'd probably been as violent an atheist. Usually, a fanatic who switched sides became doubly fanatical.

The revival of religious devotion had begun some fifteen years before, and from what Lenk had seen, the world had been a better and more kindly place for it. But there would always be those who thought the only true devotion lay in the burning of witches. Or maybe Graves needed psychiatric treatment for his morose moods were becoming suspiciously psychotic, and his fanaticism might be only a sign of deeper trouble.

The man went off muttering something about the prophecy and the time being at hand for all to be tried in fire. Lenk went back to staring at the poster until he heard the scout come back. He found Aimes and Jeremy busy unloading what seemed to be loot enough to fill two of the scouts.

"A whole library, almost intact," Aimes spoke with elation. "And plenty of it is on film, where we can correlate words and images! In two weeks, I'll speak the language like a native."

"Good!" Lenk told him. "Because in about that time, we'll be home on Earth. As long as there's any chance that our people should be warned about invaders, I'm not delaying any longer!"

"You can forget the alien invaders," Jeremy objected.

Then he exploded his thunderbolt. The horrible aliens had proved to be no more than a group of purple-skinned people on the other side of the planet with a quite divergent culture, but of the same basic stock as the green-skinned men. They also exaggerated in their drawings, and to about the same degree.

Fortunately the treasure-trove from the library would give the two men enough for years of work, and required the attention of a full group. They were eager now to take off for Earth and to begin recruiting a new expedition, taking only enough with them for the first basic steps.

Lenk headed directly for the control room. He began setting up the proper directions on the board while Jeremy finished the account.

"But *something's* hitting the planets," he objected. His hand found the main button and the *Clarion* began heading up through the atmosphere on normal gravity warp, until she could reach open space, and go into hyperdrive. "Your monsters prove to be only people—but it still doesn't explain the way disaster follows a line straight toward Earth! And until we know...."

"Maybe we'd be better off not knowing," Jeremy said. But he refused to clarify his statement.

Then the hyperdrive went on.

The homeward trip was somewhat different from the others. There were none of the petty fights this time.

Aimes and Jeremy were busy in their own way, decoding the language and collating the material they had.

Graves was with them, grumbling at being around the heathen things, but apparently morbidly fascinated by them.

Lenk could offer no help, and his duty lay with the ship. He pondered over the waves of destruction that seemed to wash toward Earth, and the diminishing cultural levels on the planets beyond. It couldn't be pure coincidence. Nor could he accept the idea that Earth was the center of the universe, and that everything else was necessarily imperfect.

Surprisingly, it was Graves who gave him his first hopeful suggestion. A week had passed, and they were well into the second when the men really caught his attention. Graves was bringing his lunch, actually smiling. He frowned.

"What gives?" he asked.

"It's all true!" Graves answered, and there was an inner glow to him. "Just as it's prophesied in *Revelations*. There were times when I had doubts, but now I know. God has set the heathens before me as proof that Armageddon will come, and I have been singled out to bring the glad tidings to His faithful!"

"I thought you didn't believe God would have anything to do with heathens!" Lenk objected. He was trying to recall whether a sudden phase of manic joy was a warning symptom or not.

"I misunderstood. I thought God had forbade space flight. But now it is proved how He loves us. He singled us out to teach us to fly through space that we could learn." Graves gathered up the dishes without noticing that Lenk hadn't touched them and went off in a cloud of ecstasy.

But his point had been made, and Lenk turned it over. Then, with a shout, he headed toward the headquarters of the two remaining scientists. He found them sitting quietly, watching a reel of some kind being projected through an alien device.

"I hear it's Armageddon we're facing," he said.

He expected grins of amusement from them—or at least from Jeremy. But none came. Aimes nodded.

"First progress in all directions. Then a period when religion seems to be in the decline. Then a revival, and a return to faith in the prophecies. All

religions agree on those prophecies, Lenk. Revelations refer to the end of Armageddon, when the whole world will wipe itself out before the creation of a better world, in one planet-wide war. The old Norse legends spoke of a Fimbulvetr, when the giants and their gods would destroy the earth in war. And these green-skinned peoples had the same religious prophecies. They came true, too. Armageddon. Contagious Armageddon."

Lenk stared from one to the other, suspecting a joke. "But that still leaves coincidence—the way things move from planet to planet...."

"Not at all," Jeremy said. "These people didn't have space travel, but they had some pretty highly developed science. They found what we thought we'd disproved—an ether drift. It would carry spores from planet to planet—and in the exact direction needed to account for what we've seen. Races were more advanced back that way, less so the way we first went, simply because of the time it took the spores to drift."

"And what about the destruction?" Lenk asked woodenly. Their faces were getting him—they looked as if they believed it. "Is there another disease spore to drive races mad?"

"Nothing like that. Just the natural course of cultures when they pass a certain level," Jeremy answered. "I should have seen that myself. Every race follows the same basic pattern. The only question is how much time we've got left—a week or a thousand years?"

They turned back to their projection device, but Lenk caught the xenologist by the shoulder and swung him back. "But they didn't have space travel! That doesn't fit their pattern. Even if you're right...."

Jeremy nodded. "We don't have the secret of immortality, either. And this race did. But, damn it, I'd still like to know what happened to all those skeletons?"

Lenk went back to his control room. And perversely, his thoughts insisted on accepting their explanation. It would be like man to think that important things could only happen on his own home planet, and prophecy an end for his own race, never dreaming it could happen to others.

It would be normal for him to sense somehow out of his own nature what his inevitable end must be—and then to be completely amazed when he found the same end for other races.

But....

Space travel—travel at faster than light speeds—had to make a difference. There were the other worlds on the other side of the sun, where men were already planning to colonize. Even if a world might normally blow up in a final wild holocaust, it would have its whole racial pattern changed when it began to spread out among the stars. It would have to have a revival of the old pioneering spirit. There had been the beginnings of that when they left. And with that, such a war could be prevented forever.

He heard Graves moving about in the galley, singing something about graves opening, and grimaced.

Besides, Jeremy had admitted that they didn't have all the answers. The mystery of the vanished skeletons remained—and until that was accounted for, nothing could be considered explained.

He forgot about the skeletons as he began planning how he'd wangle his way into one of the colonies. Then, even if catastrophe did strike Earth in another thousand years or so, the race could go on. Ten more years, and man would be safe....

He was feeling almost cheerful as they finally came out of hyperspace near Earth ... and landed....

The skeletons—lay scattered everywhere.

*** END OF THE PROJECT GUTENBERG EBOOK BATTLEGROUND

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.